

Order Sheet
IN THE LAHORE HIGH COURT
MULTAN BENCH, MULTAN
Judicial Department

W.P. No.3115 of 2018

Muhammad Azam (deceased) Vs. Board of Revenue Punjab, etc.
through L.Rs, etc.

Sr. No. of order/ proceedings	Date of order/ Proceeding	Order with signature of Judge, and that of Parties' counsel, where necessary
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20.06.2018.	Malik Ghulam Qasim Rajwana, Advocate for petitioners. Mr. Muhammad Shaukat Riaz, Advocate/Legal Advisor for respondent No.3. Mr. Muhammad Aurangzaib Khan, A.A.G.
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Learned counsel for the petitioners states that the petitioners are Mangla Dam oustees; that they were issued a certificate by the WAPDA to purchase state land for which whole of the price of the land has been paid to the state; that the petitioners applied to the District Collector, Vehari, for execution of the formal conveyance deed in their favour, which has been refused to them; that the matter came to the High Court and vide order in W.P.No. 851/1991 dated 17.03.1999, the matter was remanded to the Board of Revenue by observing as under:-

“6. I have considered the submission of the learned counsel for the parties and am of the view that the case requires re-consideration by the learned member Board of Revenue not only for the reason that atleast in 59 cases, the oustees of the Mangla Dam have already been granted the proprietary rights, but also for the reasons that the basis of the order dated 19.07.1995 i.e. of the learned Member Board of Revenue was the directive of the Governor

which has not been noticed by the learned Member, Board of Revenue in his order dated 17.05.1990, impugned in this petition.”

2. In the afore-referred order of the Court, two separate points were noted, which have not been considered by the Board of Revenue while dismissing the revision petition filed by the petitioners. First point is that at least 59 similar cases of the oustees of the Mangla Dam had been decided and they have been granted proprietary rights and the other point that was noted was the directive of the Governor of the West Pakistan, whereby it is argued that the condition relating to land not being allotable within prohibitory zone had been relaxed by the Governor of the West Pakistan. Both the afore-referred noted points have not been discussed in the order passed by the Board of Revenue after remand in ROR No. 189/1988 dated 20.09.2017 and states that as the condition laid down in the order passed by this Court has not been complied with, the impugned order is not sustainable in the eye of law.

3. Learned counsel for the respondent No.3 supported the order passed by the Board of Revenue, whereby the proprietary rights have been declined to the petitioners as the land in their possession falls within prohibitory zone. Furthermore, it is argued

that the D.G. had offered to the petitioners for allotment alternate land which the petitioners have not accepted without any reason, so they are not entitled to relief.

4. Learned A.A.G has also supported the order passed by the Board of Revenue. However, the learned A.A.G as well as the counsel for respondent No.3 have not been able to point out any paragraph in the impugned order where the reference made by the High Court is decided.

5. From the perusal of the record and the order passed by the Board of Revenue it is apparent that the matter was referred to the Board of Revenue, vide order dated 17.03.1999 in W.P.No. 851 of 1991 by pointing out two distinct points to be determined which included categories where 59 persons having similar cases had been granted proprietary rights and the letter whereby the Governor of West Pakistan had approved for relaxation of the condition for allotment, which have not been considered by the Board of Revenue through the afore-referred order, therefore, the order being in contravention of the reference made to the Board of Revenue is not sustainable in the eye of law. Consequently, this petition is **allowed** and the impugned order dated 26.09.2017 passed by

respondent No.1 is set-aside and the matter is remanded to the Board of Revenue for re-hearing and deciding the matter in accordance with the reference made to the Board of Revenue vide order dated 17.03.1999 passed in W.P.No. 851 of 1991, at the earliest preferably within a period of 4-months from the date of receipt of order of this Court. Till the decision of the matter, which shall be deemed to be pending before the Board of Revenue, the petitioners shall not be ousted from the land in their possession. In order to regulate further proceedings, the petitioners shall appear in the office of the said respondent on **12.07.2018 @ 11:00 a.m.**

(Muzamil Akhtar Shabir)
Judge